

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2019-005474

BETWEEN:

HERITAGE BREWING COMPANY LTD

Appellant

- and -

TRADITIONAL ALES HOLDINGS PLC

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies invalidity and contends that its mark was registered in good faith, that there is no likelihood of confusion, and that the Appellant's use is insufficient to found passing off rights.

B. RELEVANT FACTS

2. The Respondent's mark covers different goods and services from the Appellant's use.
3. The Appellant's use was geographically limited and did not establish national reputation.
4. The marks are sufficiently different to avoid likelihood of confusion.
5. The Respondent conducted searches before registration and did not discover the Appellant's use.
6. The Appellant delayed unreasonably in challenging the registration.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Trade Marks Act 1994
 - Intellectual Property Act 2014

D. SUBMISSIONS

8. The registration was made in good faith following proper searches.

9. There is no likelihood of confusion given the differences in marks and trade channels.
10. The Appellant lacks sufficient goodwill to maintain a passing off claim.
11. The challenge is out of time and should be dismissed.

E. AUTHORITIES

12. The following authorities are relied upon:

- Hotel Cipriani SRL v Cipriani (Grosvenor Street) Ltd [2010] EWCA Civ 110
- Maier v ASOS Plc [2015] EWCA Civ 220
- Comic Enterprises Ltd v Twentieth Century Fox Film Corp [2016] EWCA Civ 41

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss the application
- Costs on indemnity basis

David Roberts KC

David Thompson

20 June 2021

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